



**OC
PS** **ORANGE**

TECHNICAL COLLEGE

2026 – 2027

**Disciplinary Response
Code Document**

DISCIPLINARY RESPONSE CODE FOR POSTSECONDARY

Disciplinary Response Code Overview

The following section provides the disciplinary offenses and potential consequences for Postsecondary students for behavior that occurs on Board property; on school transportation; at school activities, including, but not limited to distance learning, field trips, competitions, and similar activities; and if appropriate, any other area as permitted by Florida Statutes and/or State Board of Education Rules. Student disciplinary offenses and the responses to them are divided into four levels. Each level represents progressively more serious offenses and responses to them become progressively more severe. Some offenses require consultation with law enforcement if the offense is deemed to be a violation of state or federal laws.

OCPS promotes a safe and supportive learning environment in schools, to protect students and staff from conduct that poses a serious threat to school safety. School based administrators shall provide consistent school-based discipline, where appropriate, and authorized by policy and this Code. In addition, pursuant to Section 1006.09, Florida Statutes, a good faith effort shall be made by the senior director or designee to employ parental assistance or other alternative measures prior to suspension, except in the case of emergency or disruptive conditions which require immediate suspension or in the case of a serious breach of conduct as defined by the Board and this Code.

Student Discipline Investigations

OCPS stands *in loco parentis* (Latin for "in place of the parent") while a student is in the physical custody of the school and is responsible for investigating all allegations of student misconduct within its jurisdiction using the preponderance of the evidence legal standard. Therefore, OCPS employees are authorized to interview students and obtain witness statements from students involved in offenses of the Code, however, any student may refuse to participate in an investigation. It is important to note that if the behavior is believed to be criminal and a violation of Florida Statutes, the school resource officer, or law enforcement officer, if the school resource officer is not available, may participate in the investigation.

For students that are minors, parents/guardians may request their student not participate in student discipline investigations without authorization from the parent/guardian by submitting the request, in writing, prior to the occurrence of any discipline matter, to the school administration. Refusal to participate in the investigation does not prohibit OCPS from continuing with the investigation and administering an appropriate disciplinary consequence pursuant to the procedures outlined in this Code. In addition, refusal does not prohibit the school resource officer, or law enforcement officer, from continuing the criminal investigation and imposing criminal penalties if warranted.

After the discipline investigation is complete, the student may request a copy of all documentary evidence upon which the proposed disciplinary consequence is based; however, if available and used as evidence for disciplinary purposes, video evidence may only be reviewed, a copy will not be provided. Additional information pertaining to discipline offenses and procedures can be found within this section of the Code and the following Due Process Section

If the discipline investigation is conducted due to allegations of a threat or threatening behavior, the investigation will be submitted to the School Threat Assessment Team for review. The School Threat Assessment Team is established by Board Policy JICK, Threats, and Section 1006.07, Florida Statutes.

Any allegations of sex discrimination or sexual harassment must be forwarded to the school-based Title IX Coordinator for review and investigation before administering disciplinary consequences.

Any allegations of Clery Act crimes must be reported to the Campus Security Authority (CSA) PORTAL. In addition, record must be kept in the Daily Crime Log of all crimes on or around campus

ORANGE TECHNICAL COLLEGE DISCIPLINARY RESPONSE CODE 2026 – 2027



The Disciplinary Response Code (Code) is adopted by Orange Technical College (OTC) to notify students of student expectations for behavior while attending Orange Technical College. The Disciplinary Response Code applies to all activities throughout the school, while being transported to and from school at a public expense, a reasonable time before and after school, during school-sponsored activities, and may extend to behaviors that occur within the community that have an impact on OTC or OTC students.

The following represents some of the information found within the Code, however, students should read the Code in its entirety:

- Students have the right to choose to participate in an OCPS disciplinary investigation.
- Safe Harbor allows a student who accidentally brings an object to school, or finds an object, which is not allowed by the Code, to turn the object in to school staff **before** an investigation or screening starts. The student could still receive a discipline referral. (Please note: not all zero tolerance offenses, such as firearms and weapons, qualify for Safe Harbor).
- Students who commit a Level 4 offense will be recommended for a full expulsion.
- All threats made to a school or person, including reposting a threat, will be taken seriously, regardless of the student's intent.
- Fighting is not allowed on any OCPS property or during any OCPS-sponsored event/activity; however, a student may use "self-defense" to prevent a pending attack. "Self-defense" is described as an action that is necessary to protect oneself or someone else from serious bodily harm. "Self-defense" may include asking OCPS personnel/volunteers for help, restraining or blocking the attacker, shielding oneself or others from being hit, or pushing to get away from the attacker. However, retaliating by striking or hitting (e.g., punching, slapping, kicking) a person back, or choosing not to leave after the student is able to get away, may be considered as fighting.
- Searches of students and property will be conducted if school personnel have reasonable suspicion of a violation of the Code or law. Reasonable suspicion is not required to conduct random searches, which may occur at any time and are not protected by Safe Harbor.
- Students are strongly encouraged to report any suspicious or criminal behavior observed to FortifyFL through the FortifyFL app, on the student's school-issued device, or by going online at www.getfortifyfl.com. The report can be anonymous. If the student knowingly submits a false tip to FortifyFL, the student may face criminal penalties and/or discipline under the Code.



The full version of the Code can be found at www.orangetechcollege.net/campus-safety

School Name

Grade

Print Student Name

Student Signature

Date

SECTION I: DISCIPLINARY RESPONSE CODE

Level 1: Discipline Response Code

Level 1 offenses are minor acts of misconduct that may interfere with the orderly operation of the classroom, a school function, extracurricular/co-curricular program or approved transportation.

The OCPS employee involved should intervene in the misconduct. If further action is necessary, the employee shall refer the student to the school administrator for disciplinary action. After hearing the student's explanation, consulting with staff members and other students, and conducting any other necessary investigation, the administrator will decide on disciplinary action. Suspension is not an available disciplinary response for Level 1 violations.

The following offenses and "Code Definitions" apply to Level 1 offenses. The column titled, "Simplified Definition," is provided to help students to have a better understanding of each offense, however, disciplinary referrals will be issued based on the "Code Definition."

LEVEL 1: OFFENSES			
	Offense	Code Definition	Simplified Definition
A.	Cheating	Willful or deliberate unauthorized use of the work of another person for academic purposes, or unauthorized use of notes or other material in the completion of an academic assignment or test. This includes the unauthorized use of artificial intelligence (AI) systems or other resources to generate content as one's solely original work, while failing to properly cite, disclose, or specify the extent of the resources used. In addition to disciplinary responses, the student may receive no credit for the assignment, test, or exam at the discretion of the teacher.	Using someone else's work and saying it's yours, or using secret notes or other ways to finish a test or homework without telling the teacher, or using a computer program to get answers for you without permission from the teacher. This includes using AI or other tools to create work and turn it in as your own.
D.	Disrespect	Written or oral language, or gestures that lack regard, civility, politeness, and/or courteous consideration towards a student, OCPS employee, volunteer, or contracted personnel. <i>This offense may include, but is not limited to, speech or behavior that is insulting or rude, or profane language that is not directed at anyone. This section does not include threatening or intimidating language.</i>	Saying or doing things that make someone feel bad, annoyed, or embarrassed. <i>This does not include threats or saying that you may hurt someone.</i>
E.	Dress Code	Not following the OCPS and/or CTE established dress/uniform code. (First offense)	Wearing clothes that don't follow the rules of what's allowed to be worn.
G.	False and/or Misleading Information	Intentionally providing false or misleading information to an OCPS employee, contracted personnel, or volunteer, which does not cause a disruption to the school environment.	Not telling the truth to an adult, even if it doesn't cause trouble at school.

LEVEL 1: OFFENSES

	Offense	Code Definition	Simplified Definition
KK.	Electronic Device Violation	Electronic devices that are not being used for educational purposes. An electronic device may include, but is not limited to, tablets, laptops, handheld gaming devices, and other electronic devices. <i>This offense does not include cellphones, earbuds, smartphones, smart watches, or other devices included in the Cell Phone Policy of this Code.</i>	Using electronic devices like tablets, laptops, or electronic games for things that aren't about school, like playing games or listening to music. <i>This does not include cellphones, earbuds, smartphones, smart watches, or other items listed in Level 1S.</i>
L.	Tardiness	Late arrival to class, not to school. <i>This offense should be used for the first three (3) violations.</i>	Coming late to class without a reason, even though you got to school on time. This doesn't include being late to school.
N.	Other Misconduct	Any other minor act of misconduct that may interfere with the orderly operation of the school, classroom, the school program, a school activity, an extracurricular/co-curricular program, or approved transportation and cannot be coded as another Level 1 offense.	Doing something wrong that causes trouble in class, during school activities, on the bus, or at school in general, and what you did is not listed as another Level 1 offense.
O.	Unsubstantiated Bullying (UBL)	After an investigation, there is not enough evidence to demonstrate that the alleged "bullying" incident occurred. <i>This offense is for documentation purposes only as required by the Florida Department of Education; discipline consequences are not given.</i>	After looking into a reported bullying incident very carefully, the person who looked into it decides that there isn't enough proof to say for sure it was bullying. This is just to keep track of what happened, but nobody gets in trouble for it.
P.	Unsubstantiated Harassment (UHR)	After an investigation, there is not enough evidence to demonstrate that the alleged "harassment" incident occurred. <i>This offense is for documentation purposes only as required by the Florida Department of Education; discipline consequences are not given.</i>	After looking into a reported incident where someone was bothering another person, the person who looked into it decides that there isn't enough proof to say for sure it was harassment. This is just to keep track of what happened, but nobody gets in trouble for it.
R.	Horseplay	Any rough, uncontrolled play or prank by one or more students.	When a student plays or does something silly without being careful and it might end up causing trouble or someone getting hurt.

LEVEL 1: OFFENSES			
	Offense	Code Definition	Simplified Definition
S.	Cell Phone/Wireless Communication Device Violation	The use of a wireless communication device during the school day, unless an exception applies under the Cell Phone Policy located within this Code. "Wireless communication devices," include but are not limited to, cell phones and/or auxiliary/ancillary devices such as smartwatches, smart glasses including prescription smart glasses and ear buds. <i>This offense should be used for the first two (2) violations.</i>	Using a device such as a cellphone, earbuds, smart glasses including prescription smart glasses, or smartwatches, when you are not supposed to and you are told by an adult to stop 1 or 2 times.
T.	Student Parking Violation	Violation of the OCPS and/or school policy, regulation, rule, and/or conditions contained in the application for parking.	

LEVEL 1: CONSEQUENCES	
• Confiscation of unauthorized materials, objects, or contraband Assigned seat • Counseling and direction* • No contact contract • Parent/guardian contact* (If minor) • Verbal reprimand • Warning of referral to Level 2 *Mandatory Consequences	

SECTION I: DISCIPLINARY RESPONSE CODE

Level 2: Discipline Response Code

Level 2 offenses are more serious acts of misconduct than Level 1 offenses. Level 2 offenses may include repeated acts of misconduct from Level 1 and acts directed against people or property that do not seriously endanger the health or safety of others. Level 2 offenses that are determined to be acts of hate or hate-crime related, as defined in Florida Administrative Code Rule 6A-1.0017(8)(e), may receive higher consequences and/or increased to a Level 3 offense.

The misconduct must be reported to the appropriate school administrator for further investigation. After hearing the student's explanation, consulting with staff members and other students, and conducting any other necessary investigation, the administrator will follow the procedure designated for Level 2 violations in investigating the matter and deciding on the progressive disciplinary action. Out-of-school suspension is not an available disciplinary response for Level 2 violations.

The following offenses and "Code Definitions" apply to Level 2 offenses. The column titled, "Simplified Definition," is provided to help students to have a better understanding of each offense, however, disciplinary referrals will be issued based on the "Code Definition."

LEVEL 2: OFFENSES			
	Offense	Code Definition	Simplified Definition
A.	Destruction of Property/Vandalism (under \$100)	The willful or malicious destruction of Board property, school transportation, or the property of others.	Breaking or damaging things that belong to the school, the school bus, or to someone else.
B.	Disrespect	Repeated written or oral language, or gestures that lack regard, civility, politeness, and/or courteous consideration towards a student, OCPS employee, volunteer, or contracted personnel. <i>This offense may include, but is not limited to, inappropriate language directed towards another that is not profane.</i>	Continuously being mean or embarrassing others, including teachers. This is worse than a Level 1 and could include saying mean things without saying bad words.
C.	Physical Altercation	Minor physical contact between two or more students such as pushing, shoving, or an altercation that stops upon verbal command. SELF-DEFENSE: If a student is unable to leave the area of a pending attack, a student may use self-defense. Self-defense is an action taken that is necessary to protect oneself or others from serious bodily harm; however, the action taken cannot be more forceful than the attack the student is trying to stop (See Section 1006.13, Florida Statutes). Self-defense may include asking an adult for help, restraining or blocking the attacker, shielding oneself or others from being hit, or pushing to get away from the attacker. However, retaliating by striking or hitting (e.g., punching, slapping, kicking) a person back, or choosing not to leave after you are able to get away, may be considered fighting.	Hitting, pushing, or touching another student in a way that causes trouble, but stops when someone tells them to stop. SELF-DEFENSE: If someone hits you, instead of hitting back, you can protect yourself using self-defense. Self-defense means asking an adult for help, blocking the person so they can't hit you or anyone else, covering yourself from being hit, or pushing them away so you can go somewhere safe. But if you hit them back or keep fighting instead of trying to leave, you might get in trouble.

LEVEL 2: OFFENSES			
	Offense	Code Definition	Simplified Definition
D.	Forgery (Non-criminal)	To create or reproduce the signature or document of another for fraudulent purposes. <i>This offense may include, but is not limited to, signing a document with your parent's/guardian's signature without permission.</i>	Writing a note to trick a teacher or staff member, or signing a paper with your parent's name when they didn't really sign it.
E.	Gambling (OMC) <i>Must Report to Law Enforcement</i>	Any unlawful participation in games (or activities) of chance for money and/or other things of value.	Playing games where you bet money or valuable things.
F.	Insubordination/ Open Defiance	Verbal or non-verbal refusal to comply with school rules or directions from an OCPS employee, contracted personnel, or volunteer without causing a disruption or committing any further acts.	Not listening to school rules or to what teachers say, without causing a big problem.
J.	Stealing (under \$375)	Taking the property of another without permission of the person.	Taking something that doesn't belong to you without asking if it's okay first.
K.	Unauthorized Assembly, Publications, etc.	Demonstrations and/or petitions by students, or possession and/or distribution of unauthorized publications, including misuse of electronic messages or computers, which interfere with the orderly process of the school environment, a school function, or extracurricular/co-curricular activity.	Having meetings or giving out papers to other students without asking first, which makes the school day or activities not go smoothly.
M.	Other Serious Misconduct	Any other act of misconduct that is more serious, harmful, or is a more disruptive example of any of the offenses described in Level 1, which may interfere with the orderly operation of the school, classroom, school transportation, or school activity and cannot be coded as another Level 2 offense.	Doing something really bad or harmful at school that's worse than a Level 1 offense and causes big problems for the school, like disrupting classes or activities, and what you did is not listed as another Level 2 offense.
N.	Gang Related	The possession, use, or displaying of items associated with gang activity that include, but is not limited to, clothing and accessories, gang related insignias, writings, signs, or symbols that promote gang affiliation and/or involvement.	Wearing or showing things at school that are connected to gangs, like certain clothes or symbols.
Q.	Electronic Device Violation	The repeated misuse of electronic devices; unauthorized access to programs or files not expected or intended for student use on an electronic device or OCPS network (e.g., gaming); sharing another person's username and password; or intentionally providing access to another person to use the student's device while the student is logged in. <i>This offense does not include cellphones, earbuds, smartphones, smart watches, or other devices included in the Cell Phone Policy of this Code.</i>	Using electronic devices many times for things that are not related to school. This includes going into programs or files you're not supposed to, sharing your username and password with someone else, or letting someone else use your device when you're logged in. <i>This does not include cellphones, earbuds, smartphones, smart watches, or other items listed in Level 2U.</i>
S.	Horseplay	Any rough, uncontrolled play or prank that involves one or more students and there is minor injury (e.g., scratch, bruise, etc.) as a result of the horseplay, however, the minor injury was not intentional.	Playing rough or doing pranks and someone gets hurt, like a scratch or bruise, even if you did not mean to hurt the other person.

LEVEL 2: OFFENSES			
	Offense	Code Definition	Simplified Definition
T.	Dress Code	Not following the OCPS/CTE established dress/uniform code. <i>This offense should be used for second and subsequent offenses of the dress code violation.</i>	Wearing clothes that don't follow the rules of what's allowed to be worn more than once.
U.	Cell Phone/Wireless Communication Device Violation	The repeated use of a wireless communication device during the school day, unless an exception applies under the Cell Phone Policy located within this Code. "Wireless communication devices," include but are not limited to, cell phones and/or auxiliary/ancillary devices such as smartwatches, smart glasses including prescription smart glasses and ear buds. <i>This offense should be used for 3-4 violations.</i>	Using a device such as a cellphone, earbuds, smart glasses including prescription smart glasses or smartwatches, when you are not supposed to and have already been told by an adult to stop using it 3 or 4 times.
Y.	Contraband	The first-time a student possesses, and/or distributes materials or items, other than weapons or firearms (see 4H - Weapons) or other dangerous objects (see - 4K - Other Dangerous Objects), which are not allowed on school property, transportation, or at school-sponsored events. The parent/guardian will arrange to pick up the object from the school, if applicable. At no time shall OCPS be responsible for theft, loss or damage to contraband items brought onto its property. <i>This offense may include, but is not limited to, lighters, eyebrow trimmers, or concealed self-defense chemical spray containing two (2) ounces or less that is not used or threatened to be used.</i>	The first-time a student brings or shares things at school that aren't allowed, like matches, lighters, toy guns, tools, and more. If this happens, a parent or guardian will need to come to school to pick up the item. The school won't be responsible if these things are lost, stolen, or broken while at school.
Z.	Student Parking Violation	Repeated violations of the OCPS and/or school policy, regulation, rule, and/or conditions contained in the application for parking. <i>This offense should be used for 2-3 violations.</i>	

LEVEL 2: OFFENSES			
	Offense	Code Definition	Simplified Definition
AA.	Acts of Aggression	An expression of harm towards another person without the intent and capability to carry out the harm.	When a student says they want to hurt someone, but they didn't mean it and are not able to do it.
BB.	Cheating	Repeated willful or deliberate unauthorized use of the work of another person for academic purposes, or unauthorized use of notes or other material in the completion of an academic assignment or test. This includes repeated unauthorized use of artificial intelligence (AI) systems or other resources to generate content as one's solely original work, while failing to properly cite, disclose, or specify the extent of the resources used. In addition to disciplinary responses, the student may receive no credit for the assignment, test, or exam at the discretion of the teacher.	Repeatedly using someone else's work and saying it's yours, using secret notes or other ways to finish a test or homework without telling the teacher, or using a computer program to get answers for you without permission from the teacher. This includes repeatedly using AI or other tools to create work and turn it in as your own.
CC.	Physical Aggression *Not involving Law Enforcement	Brief physical contact like pushing or shoving, without significant injury or adult intervention. <i>This offense does not include fighting if the students involved are mutual combatants.</i>	A quick push or bump that doesn't really hurt anyone and doesn't need an adult to step in.
LEVEL 2: CONSEQUENCES			
• Restorative Practice • Behavior contract/plan • Confiscation of unauthorized materials • Counseling and direction* • Special work assignment • No contact contract • Parent/guardian contact* (if minor) • Supervision plan • Guidance referral • Referral to mental health services • Warning of referral to Level 3 *Mandatory Consequences			

SECTION I: DISCIPLINARY RESPONSE CODE

Level 3: Discipline Response Code

Level 3 offenses are major acts of misconduct that disrupt the orderly operation of the school, school activity, or school transportation and threaten the health, safety, and property of others. Level 3 offenses may include repeated acts of misconduct from Level 2. Level 3 offenses that are determined to be acts of hate or hate-crime related, as defined in Florida Administrative Code Rule 6A-1.0017(8)(e), may receive higher consequences and/or increased to a Level 4 offense.

The misconduct must be reported right away to the school administrator for further investigation. After hearing the student's explanation, consulting with staff members and other students, and conducting any other necessary investigation, the administrator will follow the procedure designated for Level 3 violations in investigating the matter and deciding on the progressive disciplinary action, which may result in the removal of the student from the school or activity immediately.

The following offenses and "Code Definitions" apply to Level 3 offenses. The column titled, "Simplified Definition," is provided to help students to have a better understanding of each offense, however, disciplinary referrals will be issued based on the "Code Definition."

LEVEL 3: OFFENSES			
	Offense	Code Definition	Simplified Definition
A.	Simple Battery (PHA) <i>Must Report to Law Enforcement</i>	An actual and intentional striking of another person against his or her will without injury. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This offense does not include fighting if the students involved are mutual combatants.</i>	Hitting another person on purpose when they don't want you to, but without hurting them. <i>This doesn't count if both people agree to fight.</i>
C.	Destruction of Property/Vandalism (\$100 to \$999)	The willful or malicious destruction of Board property, school transportation, or the property of others.	Breaking or damaging things that belong to the school or to someone else on purpose.
D.	Disrespect	Conduct or behavior that lacks regard, civility, politeness, and/or courteous consideration towards a student, OCPs employee, volunteer, or contracted personnel. <i>This offense may include, but is not limited to, language and/or gestures that are abusive and/or profane directed towards another person.</i>	Doing things that hurt someone's feelings, make them feel embarrassed, or just generally make them feel bad. <i>This could include saying or doing mean things or using bad words.</i>
E.	Extortion/Blackmail	The willful or malicious threat of harm, injury, or violence to the person, property, or reputation of another with the intent to obtain money, information, services, or items of material worth. <i>This offense may include, but is not limited to, threatening to accuse another of a minor offense or crime in order to obtain lunch money.</i> <i>This offense does not include taking or attempted taking of money or property from the person (see Level 4M - Robbery).</i>	Making threats to hurt others in order to get something from them. <i>If you take or try to take something from someone and threaten to hurt them, that is a Level 4.</i>

LEVEL 3: OFFENSES

	Offense	Code Definition	Simplified Definition
F.	Fighting (FIT) <i>Must Report to Law Enforcement</i>	When two or more persons mutually participate in use of force or physical violence that requires either physical intervention or results in injury requiring first aid or medical attention. <u>Florida Administrative Code Rule 6A-1.0017.</u> <u>SELF-DEFENSE: If a student is unable to leave the area of a pending attack, a student may use self-defense. Self-defense is an action taken that is necessary to protect oneself or others from serious bodily harm; however, the action taken cannot be more forceful than the attack the student is trying to stop (see Section 1006.13, Florida Statutes). Self-defense may include asking an adult for help, restraining or blocking the attacker, shielding oneself or others from being hit, or pushing to get away from the attacker. However, retaliating by striking or hitting (e.g., punching, slapping, kicking) a person back, or choosing not to leave after you are able to get away, may be considered fighting.</u>	<u>When two or more people use force or violence together, and either someone else needs to step in to stop it or it causes an injury needing first aid or a doctor.</u> <u>SELF-DEFENSE: If someone hits you, instead of hitting back, you can protect yourself using self-defense. Self-defense means asking an adult for help, blocking the person so they can't hit you or anyone else, covering yourself from being hit, or pushing them away so you can go somewhere safe. But if you hit them back or keep fighting instead of trying to leave, you might get in trouble.</u>
G.	Firecrackers/ Fireworks	Unauthorized possession, sale, or storage of unlit fireworks or firecrackers on Board property, school transportation, and/or at a school activity.	Having, keeping, or selling fireworks or firecrackers on school property, in school vehicles, or during school events without setting them off.
H.	Gross Insubordination / Open Defiance	Willful refusal to submit to or comply with authority; exhibiting contempt or open resistance to a direct order; challenging the authority of an OCPS employee, contracted personnel, or volunteer in the presence of others which causes a disruption.	Not listening to what school staff tell you to do on purpose; saying or doing things that show you won't follow any directions; or arguing with an adult in front of others, which causes a problem.
I.	Illegal Organizations	Establishing or participating in a secret society on Board property, on school transportation, and/or at a school activity.	Being in groups or clubs that are kept secret at school and adults don't know about it.
J.	Possession of Contraband Material	The repeated possession and/or distribution of materials or items, other than weapons or firearms (see 4H - Weapons) or other dangerous objects (see - 4K - Other Dangerous Objects), which are not allowed on school property, transportation, or at school-sponsored events. The parent/guardian will arrange to pick up the object from the school, if applicable. At no time shall OCPS be responsible for theft, loss or damage to contraband items brought onto its property. <i>This offense may include, but is not limited to, lighters, eyebrow trimmers, or concealed self-defense chemical spray containing two (2) ounces or less that is not used or threatened to be used.</i>	Repeatedly bringing or sharing things at school that aren't allowed, like matches, lighters, toy guns, tools, and more. If this happens, a parent or guardian will need to come to school to pick up the item. The school won't be responsible if these things are lost, stolen, or broken while at school.

LEVEL 3: OFFENSES			
	Offense	Code Definition	Simplified Definition
L.	Tobacco/Vaping/ Nicotine (TBC) <i>Must Report to Law Enforcement</i>	The possession or use of tobacco or nicotine products on school grounds, at school-sponsored events, or on school transportation. Tobacco incidents cannot be Drug-related. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This offense includes vaping nicotine products, items represented to be of said nature, and additional items which may include, but are not limited to, electronic cigarettes, CBD oil, Juuls, pods, vapors and hookah pens that do not contain THC or any other illegal controlled substance.</i>	Smoking cigarettes or vaping with nicotine at school, during school events, or on school buses.
M.	Stealing (\$375 to \$749)	The taking of the property of another without the permission of the person.	Taking someone else's things without asking.
N.	Unauthorized Entrance to OCPS Property	To enter or remain on school grounds/campus, school transportation, or at a school-sponsored event/off campus, without authorization or invitation and with no lawful purpose for entry. <i>This applies only to incidents that did not have a prior official warning, did not result in an arrest, or did not involve students under suspension or expulsion.</i>	Going or staying on school property, school buses, or school events without permission or after being told to leave by the school staff. <i>This rule applies only if there wasn't a warning to leave before, nobody got arrested, or it didn't involve students who were already suspended or expelled.</i>
		Breaking of curfew regulations during an extracurricular/co-curricular activity.	Breaking curfew rules means not following the time you're supposed to be back during a school activity.
Q.	Other Serious Misconduct	Any other act of misconduct that is more serious, harmful, or is a more disruptive example of any of the offenses described in Level 2, which may interfere with the orderly operation of the school, school transportation, or school activity and cannot be coded as another Level 3 offense. <i>This offense may include, but is not limited to, sexting that is not intended to extend beyond the sender/receiver; body piercing, providing false/misleading information to staff members, or written/verbal language intended or reasonably calculated to insult and/or incite another person.</i>	Doing something really bad, harmful, or very disruptive at school, on the bus, or during a school activity, which is worse than Level 2 offenses and doesn't fit into any other Level 3 category. <i>This may include piercing your ears at school, lying to adults on purpose, saying or doing something that gets someone else in trouble.</i>
T.	Threat/Intimidation (TRE) <i>Must Report to Law Enforcement</i>	An incident where there was no physical contact between the offender and victim, but the victim reasonably believed that physical harm could have occurred based on verbal or non-verbal communication by the offender. This includes nonverbal threats and verbal threats of physical harm which are made in person, electronically or through any other means. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This offense includes threats to hit, fight, or beat up another person with a plan and/or furtherance of action, or to kill another person without a plan and/or furtherance of action.</i>	Saying something or acting in a way that makes another person feel like they might get hurt, even though no one actually touched them. This could be through words or actions that make them think they might be harmed. It doesn't matter if these threats are said face-to-face, online, or any other way. <i>This includes things like threatening to hit, fight, or beat up someone and planning how to do it or trying to do it, or threatening to kill someone without planning how to do it or trying to do it.</i>

LEVEL 3: OFFENSES			
	Offense	Code Definition	Simplified Definition
U.	Gang Related	Conduct or behavior that tends to promote gang activity or provoke violence, and seriously disrupts the orderly operation of the school program, any school activity or transportation services. <i>This offense includes, but is not limited to, the possession, use or displaying of gang paraphernalia, jewelry, tattoos, clothing, or other insignias and writings that promote gang affiliation/involvement/the use of gang related signs or symbols or any other gang associated behavior.</i>	Doing things or acting in a way that encourages gangs, causes fights, or makes it hard for school to run smoothly. <i>This includes having or using gang-related stuff or doing anything else that shows you're involved with gangs.</i>
V.	Harassment (HAR) <i>Must Report to Law Enforcement</i>	Any threatening, insulting, or dehumanizing gesture, use of data or computer software, or written, verbal, or physical conduct that places an OCPS student or school employee in reasonable fear of harm to his or her person or damage to his or her property, has the effect of substantially interfering with a student's educational performance, opportunities, or benefits, or has the effect of substantially disrupting the orderly operation of a school including any course of conduct directed at a specific person that causes substantial emotional distress in such a person and serves no legitimate purpose. Instances of Harassment that are chronic or repeated in nature should be evaluated for Bullying or Bullying-Related. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>Harassment is something that happens one (1) time, if the behavior is repetitive, it could be a Level 4V-Bullying. This offense includes, but is not limited to, pantsing that includes limited exposure.</i>	Doing anything that makes another person feel scared they might get hurt or their things might get damaged. This includes saying mean things, making threatening movements, using computer programs to harm someone, or doing anything that makes it hard for a student to learn or for the school to run smoothly. If you do this to the same person more than once, then it is Bullying, which is a Level 4. <i>Harassment only has to happen one (1) time, if it happens more than once, then it could be a Level 4V - Bullying.</i>
Y.	Electronic Device Violation	The continual misuse of electronic devices five (5) or more instances), that are not educational in nature; the unauthorized modification of software/hardware configuration on an electronic device (e.g., factory reset of District device); unauthorized access to programs and/or files not expected or intended for student use on an electronic device or OCPS network; unauthorized access to websites using a proxy. <i>This offense does not include images, videos, messages, etc. that can be classified as another offense (e.g., threats, images/videos containing nudity). In addition, this offense does not include cellphones, earbuds, smartphones, smart watches, smart glasses including prescription smart glasses or other devices included in the Cell Phone Policy of this Code.</i>	Using electronic devices for things that have nothing to do with school, like playing games or using programs you're not allowed to use. This also includes trying to access the internet or look at files that you're not supposed to. However, it doesn't include things like sending inappropriate pictures, videos, or messages, which would be a different offense. <i>This does not include cellphones, earbuds, smartphones, smart watches, or other items listed in Level 3DD.</i>

LEVEL 3: OFFENSES

	Offense	Code Definition	Simplified Definition
AA.	Horseplay	Any rough, uncontrolled play or prank that involves one or more students and there is serious injury as a result of the horseplay (e.g., medical intervention required), however, the injury was not intentional.	Playing too rough and accidentally hurting someone who needs to see the nurse or a doctor.
BB.	Physical Aggression *Not involving Law Enforcement	Repeated brief physical contact like pushing or shoving, without significant injury or adult intervention. <i>This offense does not include fighting if the students involved are mutual combatants.</i>	Repeated quick push or bump that doesn't really hurt anyone and doesn't need an adult to step in. <i>This offense does not include fighting.</i>
CC.	Disruptive Conduct	Conduct or behavior that interferes with or disrupts the orderly process of teaching/learning, school environment, a school function, or extracurricular/co-curricular activity. <i>This offense does not include behavior that would amount to a Level 4T – Other or Level 4I, Disruption of Campus-Major.</i>	Doing things that make it hard for teachers to teach, students to learn, or for school activities to happen. <i>This doesn't include really serious disruptions, like ones that stop the whole school from running properly, that would be a Level 4.</i>
DD.	Cell Phone/Wireless Communication Device Violation	The repeated use of a wireless communication device during the school day, unless an exception applies under the Cell Phone Policy located within this Code. "Wireless communication devices," include but are not limited to, cell phones and/or auxiliary/ancillary devices such as smartwatches, smart glasses including prescription smart glasses and ear buds. <i>This offense should be used for five (5) or more violations.</i>	Using a device such as a cellphone, earbuds, smart glasses including prescription smart glasses or smartwatch, when you are not supposed to and have already been told by an adult to stop using it five (5) or more times.
EE.	Campus Security Violation	Intentionally allowing someone to have unauthorized access to the school campus or a specific classroom. <i>This offense includes, but is not limited to, propping open doors with the intent of allowing others on the campus who are not supposed to be there or providing a false identity. If the campus security violation results in a major campus disruption, injury to others, criminal activity, or violence, then a Level 4T-Other should be considered.</i>	Letting someone into the school that you know should not be there. <i>This may include leaving doors open on purpose so someone can come in or lying about who you are to a teacher or substitute. If what you did causes someone to get hurt or makes the school not run smoothly, then you may get a Level 4.</i>
HH.	Student Parking Violation	Repeated violations of the OCPS and/or school policy, regulation, rule, and/or conditions contained in the application for parking. <i>This offense should be used for four (4) or more violations.</i>	

LEVEL 3: CONSEQUENCES

- Guidance referral
- Behavior contract/plan
- Confiscation of unauthorized materials, objects, or contraband
- **Counseling and direction***
- Supervision plan
- No contact contract
- **Parent/guardian contact***
- Suspension from school (1-10 days)
- Referral to mental health services
- Warning of referral to Level 4

****Mandatory Consequences***

SECTION I: DISCIPLINARY RESPONSE CODE

Level 4: Discipline Response Code

Level 4 offenses are the most serious acts of misconduct and are grounds for expulsion. Level 4 offenses may include repeated acts of misconduct from Level 3. Any Level 4 act shall result in a 10-day suspension with a potential recommendation for expulsion. Level 4 offenses that are determined to be acts of hate or hate-crime related, as defined in Florida Administrative Code Rule 6A-1.0017(8)(e), are required to be reported to law enforcement.

Major acts of misconduct must be reported right away to the school administrator for further investigation. After hearing the student's explanation, consulting with staff members and other students, and conducting any other necessary investigation, the administrator will follow the procedure designated for Level 4 violations in investigating the matter and refer the Level 4 to District personnel for further review.

The following offenses and "Code Definitions" apply to Level 4 offenses. The column titled, "Simplified Definition," is provided to help students to have a better understanding of each offense, however, disciplinary referrals will be issued based on the "Code Definition."

LEVEL 4: OFFENSES			
	Offense	Code Definition	Simplified Definition
A.	Alcohol (ALC) <i>Must Report to Law Enforcement and CSA Portal</i>	Possession, sale, purchase, distribution, or use of alcoholic beverages. Use means the person is caught in the act of using, admits to use, or is discovered to have used in the course of an investigation. Alcohol incidents cannot be drug related. <u>Florida Administrative Code Rule 6A-1.0017.</u>	Having, selling, buying, giving, or drinking grown-up drinks like alcohol is not allowed. "Using" means getting caught doing it, saying you did it, or it being found out you did it when the school looks into it.
B.	Arson (ARS) <i>Must Report to Law Enforcement and CSA Portal</i>	(intentionally setting a fire on school property) To intentionally damage or cause to be damaged, by fire or explosion, any dwelling, structure, or conveyance, whether occupied or not, or its contents. <u>Florida Administrative Code Rule 6A-1.0017.</u>	Setting something on fire on purpose, or making something explode on purpose that causes damage.
C.	Threat/Intimidation (TRE) <i>Must Report to Law Enforcement</i>	(instilling fear in others) An incident where there was no physical contact between the offender and victim, but the victim reasonably believed that physical harm could have occurred based on verbal or nonverbal communication by the offender. This includes nonverbal threats and verbal threats of physical harm which are made in person, electronically, or through any other means. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This offense includes threats to kill with a plan and/or furtherance of action.</i>	Saying something or acting in a way that makes another person feel like they might get hurt, even though no one actually touched them. This could be through words or actions that make them think they might be harmed. It doesn't matter if these threats are said face-to-face, online, or any other way. <i>This includes threatening to kill someone and planning how to do it or trying to do it.</i>

LEVEL 4: OFFENSES			
	Offense	Code Definition	Simplified Definition
D.	Aggravated Battery (BAT) Must Report to Law Enforcement	(intentional great bodily harm) A battery where the attacker intentionally or knowingly causes more serious injury such as great bodily harm, permanent disability, or permanent disfigurement; uses a deadly weapon; or where the attacker knew or should have known the victim was pregnant. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This offense includes injuries with substantial risk of death, extreme physical pain, protracted and obvious disfigurement, and protracted loss or impairment of the function of a bodily member, organ, or mental faculty.</i>	Someone hurts another person very badly on purpose. It could mean causing really serious injuries like hurting their body a lot, making them unable to move or use their body parts forever, or making them look very different. It also includes when someone uses a dangerous weapon to hurt someone or when they knew that the person they hurt was going to have a baby.
E.	Threats to the School (DOC) Must Report to Law Enforcement and CSA Portal	Making a threat or false report of a threat that involves the school or school personnel's property, school transportation, or a school-sponsored activity. This is a zero-tolerance offense under <u>Section 1006.13, Florida Statutes.</u> <i>This offense includes, but is not limited to, reposting threats, threats to throw, project, place, or discharge any destructive device; false reports concerning planting a bomb, an explosive, or weapon of mass destruction; or concerning the use of firearms in a violent manner.</i>	Saying or doing something that threatens the school, school bus, or school activity that may be said out loud, hinted at, or even posted online or sent in messages. <i>This may include making a bomb threat or threatening to kill a lot of people.</i>
F.	Drug Use/Possession (DRU) Must Report to Law Enforcement and CSA Portal	(illegal drug possession or use) The use or possession of any drug (e.g. illegal drugs, prescription drugs, etc.), narcotic, controlled substance, or any substance when used for chemical intoxication. Use means the person is caught in the act of using, admits to use, or is discovered to have used in the course of an investigation. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This offense includes the possession or use of any substance represented as a drug, narcotic, controlled substance, or any other substance when used for chemical intoxication.</i> <i>This offense also includes the possession or use of prescription medication that is not prescribed to the student.</i>	Having or taking any kind of drug, medicine that's not allowed, or something that can make you feel strange. "Using" means getting caught doing it, saying you did it, or it being found out you did it when the school looks into it.

LEVEL 4: OFFENSES

	Offense	Code Definition	Simplified Definition
H.	Weapons Possession (WPO) Must Report to Law Enforcement and CSA Portal	(possession of firearms and other instruments which can cause harm) Possession of a firearm or weapon as defined by <u>Section 790.001, Florida Statutes</u>, that can inflict serious harm on another person or that can place the person in reasonable fear of serious harm. <u>Florida Administrative Code Rule 6A-1.0017</u>. <i>This offense includes the following objects as defined in <u>Section 790.001, Florida Statutes</u>.</i> Firearm means any weapon (including a starter gun) which will, is designed to, or may readily be converted to expel a projectile by the action of an explosive; the frame or receiver of any such weapon; any firearm muffler or firearm silencer; any destructive device; or any machine gun. The term "firearm" does not include an antique firearm unless the antique firearm is used in the commission of a crime." Weapon means any dirk, knife (with a blade length of 2.5 inches or more), metallic knuckles, slingshot, billie, tear gas gun, chemical weapon or device over two (2) ounces, or other deadly weapon.	Having a gun or weapon that can seriously hurt someone or make them really scared. <i>This may include having a gun, bomb, dirk, knife with a blade that is more than 2.5 inches, slingshot, club, metal knuckles, pepper spray over two (2) ounces, or other weapon that can seriously hurt someone.</i>
I.	Disruption on Campus-Major (DOC) Must Report to Law Enforcement and CSA Portal	(major disruption of all or a significant portion of campus activities, school-sponsored events, and school bus transportation) Disruptive behavior that poses a serious threat to the learning environment, health, safety, or welfare of others. Examples of major disruptions include inciting a riot or initiating a false alarm." <u>Florida Administrative Code Rule 6A-1.0017</u>. <i>This offense may include, but is not limited to, disruptive behavior that causes the bus to stop for safety, closing the cafeteria, pulling a fire alarm, preventing other students from proceeding to the next class.</i>	Causing a big problem that makes it hard for everyone at school to do their activities or go to events. <i>This includes things like starting a big fight, pretending there's an emergency when there isn't, causing the bus to stop for safety, causing the cafeteria to close, pulling a fire alarm when there is not a fire, or stopping other students from going to their class.</i>
J.	Grand Theft (\$750 or over) (STL) Must Report to Law Enforcement	(taking of property from a person, building, or a vehicle) (\$750 threshold) The unauthorized taking of the property of another person or organization, including motor vehicles, valued at \$750 or more, without threat, violence, or bodily harm. Thefts of property of any value that involve a use of force, violence, assault, or putting the victim in fear must be reported as robbery. <u>Florida Administrative Code Rule 6A-1.0017</u>.	Taking things that don't belong to you, like a car or cellphone, that is worth \$750 or more, without scaring or hurting anyone. If someone takes things and uses force or makes the person scared, it's called robbery and is a Level 4M.

LEVEL 4: OFFENSES

	Offense	Code Definition	Simplified Definition
K.	Other Dangerous Objects	The possession, sale, distribution, or control of any instrument or object, other than a firearm or weapon as defined under a Level 4H, Weapons Possession, which could be used to inflict harm on another person or to intimidate any person. <i>This offense includes, but is not limited to, BB guns or pellet guns, airsoft guns, paintball guns and replicas of any gun or weapon including 3D created or printed replicas, water/gel bead gun, chains, pipes, common household tools, razor blades, box cutter/utility knife, knives with blades less than 2.5 inches, ice picks, other pointed instruments, nunchucks, throwing stars, Taser, items used for self-defense (e.g., kubaton), ammunition, firearm clips, firearm cartridges. This offense also includes igniting fireworks/firecrackers.</i>	Having, selling, or giving out things that could hurt or scare someone. <i>This includes things like BB guns, airsoft guns, paintball guns, something that looks like a gun, water/gel bead guns, chains, pipes, tools, razor blades, box cutters, knives with blades that are less than 2.5 inches, sharp things, nunchucks, throwing stars, items for self-defense, bullets, bullet holders, or lighting fireworks.</i>
L.	Repeated Misconduct of a More Serious Nature	Repeated misconduct, which may substantially disrupt the orderly conduct of a classroom, school, school transportation, and/or school activity. Recommendations for expulsion relative to repeated misconduct must be based on documented referrals and a variety of intervention strategies.	Doing the wrong thing over and over again, which can really affect how things are supposed to be in class, school, on the bus, or during school activities.
M.	Robbery (ROB) <i>Must Report to Law Enforcement and CSA Portal</i>	(using force to take something from another) The taking or attempted taking of money or other property from the person or custody of another with the intent to permanently or temporarily deprive the person or owner of the money or other property under the confrontational circumstances of force, or threat of force, or violence, and/or by putting the victim in fear. A key difference in Grand Theft and Robbery is that Robbery involves violence, a threat of violence or assault, and putting the victim in fear. <u>Florida Administrative Code Rule 6A-1.0017.</u>	Taking or trying to take someone's money or things on purpose, and making them really scared by using force, threats, or violence. The big difference between Grand Theft and Robbery is that Robbery includes being violent, threatening violence, or scaring the person.
N.	Sexual Battery (SXB) <i>Must Report to Law Enforcement and CSA Portal</i>	(attempted or actual) Forced or attempted oral, anal, or vaginal penetration by using a sexual organ or an object simulating a sexual organ, or the anal or vaginal penetration of another by any body part or foreign object. Both males and females can be victims of sexual battery. <u>Florida Administrative Code Rule 6A-1.0017.</u>	Someone trying to make another person do things with their private body parts that are not okay or using things that pretend to be private body parts. Boys and girls can be hurt by this. It's not okay for adults at school, other kids, or people who are not part of the school to do these things. This should never happen, and it's important to tell a trusted adult if it does.

LEVEL 4: OFFENSES

	Offense	Code Definition	Simplified Definition
O.	Sexual Harassment (SXH) <i>Must Report to Law Enforcement and CSA Portal</i>	(undesired sexual behavior) Unwelcome conduct of a sexual nature, such as sexual advances, requests for sexual favors, and other verbal, non-verbal, or physical conduct of a sexual nature. Harassing conduct can include verbal or nonverbal actions, including graphic and written statements, and may include statements made through computers, cell phones, and other devices connected to the Internet. The conduct can be carried out by school employees, other students, and non-employee third parties. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This offense includes, but is not limited to, unwanted sexting, sexting that extends beyond the initial sender/receiver, or pantsing that includes exposure of genitals.</i>	When someone does things that make another person uncomfortable, like saying or doing things that involve private parts. This can happen through talking, writing, or using devices like computers or phones. It's not okay for adults at school, other kids, or people who are not part of the school to do these things. This should never happen, and it's important to tell a trusted adult if it does.
P.	Sexual Offenses (SXO) <i>Must Report to Law Enforcement and CSA Portal</i>	(lewdness, indecent exposure) Other sexual contact, including intercourse, without force or threat of force. Subjecting an individual to lewd sexual gestures, sexual activity, or exposing private body parts in a lewd manner. <u>Florida Administrative Code Rule 6A-1.0017.</u>	When two or more students agree to touch each other's private body parts or when a student shows private parts in a disrespectful way. It's not okay for adults at school, other kids, or people who are not part of the school to do these things. This should never happen, and it's important to tell a trusted adult if it does.
Q.	Violation of Early Re-entry Plan	Any act or series of acts that violates or has the practical effect of violating an early re-entry plan from full exclusion/expulsion.	Doing something that breaks the plan to come back early after being removed from the school for another offense.
S.	Criminal Mischief (\$1000 or over) (VAN) <i>Must Report to Law Enforcement</i>	(destruction, damage, or defacement of school or personal property) Willfully and maliciously injuring or damaging by any means any real or personal property belonging to another, including, but not limited to, the placement of graffiti thereon or other acts of vandalism thereto. <u>Florida Administrative Code Rule 6A-1.0017.</u>	Doing things on purpose to hurt or breaking things that belong to the school or other people. That included drawing on walls or damaging anything that doesn't belong to you.
T.	Other Major (OMC) <i>Must Report to Law Enforcement</i>	(major incidents that do not fit within the other definitions) Any serious, harmful incident resulting in the need for law enforcement consultation not previously classified. <u>Florida Administrative Code Rule 6A-1.0017.</u>	When something happens and it's so serious that the police need to be involved to figure things out. This offense is used when the action cannot fit into another Level 4 category.
U.	Drug Sale/Distribution (DRD) <i>Must Report to Law Enforcement and CSA Portal</i>	(illegal sale or distribution of drugs) The manufacture, cultivation, purchase, sale or distribution of any drug, narcotic, controlled substance or any substance represented to be a drug, narcotic, or controlled substance. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This offense includes the intent to sell any drug, narcotic, controlled substance or any other substance represented to be a drug, narcotic, or controlled substance.</i> <i>This offense also includes giving prescription drugs to another student.</i>	Making, growing, buying, selling, or giving out any drug or substance that might act like a drug. <i>This may include trying to sell drugs even if you have not sold any yet or giving medicine a doctor gave you to someone else.</i>

LEVEL 4: OFFENSES

	Offense	Code Definition	Simplified Definition
V.	Bullying (BUL) Must Report to Law Enforcement	(intimidating behaviors that are repeated, intentional, and involve a power imbalance) Systematically and chronically inflicting physical hurt or psychological distress on one or more students or employees. Bullying includes instances of cyberbullying, as defined in Section 1006.147, Florida Statutes. Bullying may include, but is not limited to, repetitive instances of teasing, social exclusion, threats, intimidation, stalking, physical violence, theft, harassment, public or private humiliation, or destruction of property. If the physical harm or psychological distress is not the result of systematic or chronic behavior, evaluate for Harassment. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>The bullying includes intimidating behaviors that are repeated, intentional, and involve a power imbalance.</i> <i>Repeated discipline of another nature (such as repeated fights with the same person) may constitute bullying.</i>	When someone keeps being mean or hurting others over and over again, either by doing things physically or making them feel really bad. This can happen at school or even online, like on computers. Bullying isn't just hitting or pushing—it can also be teasing, leaving someone out, threatening, scaring, following, stealing, being mean, embarrassing someone, or breaking someone's things. Bullying also means that one person has more control or power than the other person.
X.	Hazing (HAZ) Must Report to Law Enforcement and CSA Portal	Any action or situation that endangers the mental or physical health or safety of a student at a school with any of grades 6 through 12 for purposes of initiation or admission into or affiliation with any school-sanctioned organization. "Hazing" includes, but is not limited to pressuring, coercing, or forcing a student to participate in illegal or dangerous behavior, or any brutality of a physical nature, such as whipping, beating, branding, or exposure to the elements. <u>Florida Administrative Code Rule 6A-1.0017.</u>	For 6-12 Grades only. When someone pressures or forces another student to do something that is illegal or dangerous or they hurt the other student just so the other person can be part of a school club or sport.
Y.	Simple Battery (PHA) Must Report to Law Enforcement	An actual and intentional touching or striking of another person against his/her will causing bodily harm. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This offense includes incidents that require medical attention. This offense does not include death or injuries with substantial risk of death, extreme physical pain, protracted and obvious disfigurement, and protracted loss or impairment of the function of a bodily member, organ, or mental faculty (see 4D Aggravated Battery)</i>	When someone touches or hits another person on purpose and they hurt the other person's body and the other person has to get help from the nurse or doctor.
Z.	Sexual Assault (SXA) Must Report to Law Enforcement and CSA Portal	An incident that includes fondling, indecent liberties, child molestation, or threatened rape. Both males and females can be victims of sexual assault. <u>Florida Administrative Code Rule 6A-1.0017.</u>	A really serious situation where someone does or says things that are not okay about someone else's private parts. Both boys and girls can be hurt by this. It's not okay for adults at school, other kids, or people who are not part of the school to do these things. This should never happen, and it's important to tell a trusted adult if it does.

LEVEL 4: OFFENSES

	Offense	Code Definition	Simplified Definition
AA.	Electronic Device Violation	Use of unauthorized access to programs and/or files not expected or intended for student use on any electronic device (including personal devices or cellphones) or OCPS network; or any use that violates Board policies, local, state, and/or federal laws and regulations. <i>This offense may include, but is not limited to, using a proxy to gain access to the OCPS network with intent to do harm or alter records, or having images, videos, messages, etc., on a district issued device that are not shared with others (e.g., images/videos containing nudity).</i>	Using an electronic device in a way that's not allowed, like looking at things or doing stuff you're not supposed to. This could mean getting into the school computer system to cause trouble or change things, or having pictures, videos, or messages on your school device that you shouldn't have (like pictures with no clothes).
CC.	Burglary (BRK) <i>Must Report to Law Enforcement and CSA Portal</i>	(illegal entry into a facility) Unlawful entry into or remaining in a dwelling, structure, or conveyance with the intent to commit a crime therein. <u>Florida Administrative Code Rule 6A-1.0017.</u>	Going into the school, a building, or car, without permission and planning to do something wrong inside.
DD.	Homicide (HOM) <i>Must Report to Law Enforcement and CSA Portal</i>	The unjustified killing of one human being by another. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This offense includes murder, manslaughter.</i>	When one person hurts and causes another person to die.
EE.	Kidnapping (KID) <i>Must Report to Law Enforcement</i>	Forcibly, secretly, or by threat, confining, abducting, or imprisoning another person against his/her will and without lawful authority. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This offense includes abduction of an individual.</i>	When someone makes another person go somewhere they don't want to, or keeps them in a place by using force, keeping it a secret, or by scaring them.
FF.	Tobacco/Vaping/ Nicotine (TBC) <i>Must Report to Law Enforcement</i>	(cigarettes or other forms of tobacco/nicotine) The sale, purchase, distribution of tobacco or nicotine products on school grounds, at school sponsored events, or on school transportation. Tobacco incidents cannot be Drug-related. <u>Florida Administrative Code Rule 6A-1.0017.</u> <i>This includes vaping nicotine products, items represented to be of said nature, and additional items, which may include, but are not limited to, electronic cigarettes, CBD oil, Juuls, pods, vapors and hookah pens that do not contain THC or any other illegal controlled substance. This offense also includes repeated Level 3L - Tobacco offenses.</i>	Selling, buying, or sharing tobacco or nicotine items like cigarettes or vaping things at school or school events. This also includes having several Level 3L referrals. <i>This includes using things like electronic cigarettes, CBD oil, Juuls, pods, vapors, and hookah pens that don't have illegal stuff in them.</i>
GG.	Igniting	Fires that are intentional and do not cause damage. <i>This offense may include, but is not limited to, student starting a fire in a trashcan or a student burning paper/small object that does not result in damage.</i>	Setting something on fire on purpose that does not cause damage.

LEVEL 4: OFFENSES			
	Offense	Code Definition	Simplified Definition
JJ.	Trespassing (TRS) <i>Must Report to Law Enforcement and CSA Portal</i>	(illegal entry onto campus) To enter or remain on school grounds/campus, school transportation, or at a school sponsored event/off campus without authorization or invitation and with no lawful purpose for entry. Only incidents involving a student currently under suspension or expulsion, or incidents where any offender (student or non-student) was previously issued an official trespass warning by school officials, or where any offender was arrested for trespass. <u>Florida Administrative Code Rule 6A-1.0017.</u>	Going to the school or staying at the school or school activity without being invited or told it's okay when you've already been told you cannot be at the school or school activity.
LEVEL 4: CONSEQUENCES			
<u>School Consequences</u> • Counseling and direction* • No contact contract • Parent/guardian contact* (if minor) • Guidance referral • Supervision plan • Temporary or permanent removal from participation in extracurricular/co-curricular programs or activities, e.g., to include, but not limited to, senior graduation • Up to a 10-day suspension with a recommendation for permanent withdrawal from all OTC campuses and to include a HOLD on the OTC student management system* *Mandatory Disciplinary Responses			

OTC Appeal Process

Due Process Procedure

A campus dean or administrator must inform the student of school rules that have been violated. A student has the right to present evidence or witnesses concerning violation, and the student must:

1. Have knowledge of the charge or complaint being made against him/her,
2. Have a description of the specific charges,
3. Be given and have the opportunity to present evidence and/or witnesses on their own behalf at the time of the hearing,
4. Have had prior knowledge that their actions were in violation of established rules and regulations, and
5. Be advised that they have to go to the next higher authority if not satisfied with the action or decision rendered at the initial hearing.

This procedure does not apply to any complaints brought under the Jeanne Clery Campus Safety Act (Clery Act) or Title IX of the Education Amendments of 1972 (Title IX).

Equal Educational Opportunities and Title IX:

It is the policy of the School Board of Orange County Public Schools to maintain an educational environment which is free from all forms of bullying and unlawful harassment, including sexual harassment. Individuals found to have engaged in bullying or unlawful harassment will be subject to appropriate disciplinary action. For additional information, see School Board policy JB - Equal Educational Opportunities at: JB Equal Educational Opportunities (8-11-2020).pdf (sharpschool.com).

Please reference Title IX of the Education Amendments of 1972 and Board Policy JB, Equal Educational Opportunities, for more information regarding the requirements and procedures OCPS is required to follow when there are allegations of sexual harassment, sexual violence, or sexual discrimination.

